



FIBREHOOD (PRIVATE) LIMITED
STANDARD TERMS & CONDITIONS
RESIDENTIAL FIBRE BROADBAND SERVICES
VERSION 2.0

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, unless the context indicates otherwise:

1.1.1 "Activation Fee" means the fee payable by the Customer for activation of the Services.

1.1.2 "Agreement" means the Customer Service Order Form, these Standard Terms & Conditions, the Service Level Agreement, the Fair Use Policy, the Privacy Notice, the Price Schedule and all annexures, schedules and amendments issued by Fibrehood from time to time.

1.1.3 "Business Day" means any day other than a Saturday, Sunday or public holiday in Zimbabwe.

1.1.4 "Charges" means all fees, subscriptions, activation fees, installation fees, call-out fees, equipment charges and any other charges payable by the Customer.

1.1.5 "Customer" means the subscriber identified in the Service Order Form.

1.1.6 "Customer Premises" means the premises at which the Services are installed.

1.1.7 "Customer Equipment" means equipment owned by the Customer including routers, mesh devices, computers, televisions and other devices connected to the Network.

1.1.8 "Equipment" means all Fibrehood-owned equipment installed or supplied for provision of the Services including ONTs, fibre termination units, fibre patch cords, access boxes and associated network devices.

1.1.9 "Fair Use Policy" means Fibrehood's Acceptable Fair Use, Access and Network Management Policy as amended from time to time.

1.1.10 "Force Majeure Event" means any event beyond the reasonable control of a party including natural disasters, war, terrorism, riots, labour disputes, epidemics, pandemics, utility failures, regulatory actions and failures of telecommunications infrastructure.

1.1.11 "Network" means Fibrehood's fibre optic network and associated telecommunications infrastructure.

1.1.12 "POTRAZ" means the Postal and Telecommunications Regulatory Authority of Zimbabwe.

1.1.13 "Price Schedule" means Fibrehood's current published pricing applicable to the Services.

1.1.14 "Services" means fibre broadband internet services and related telecommunications services provided by Fibrehood.

1.1.15 "Service Order Form" means the application or subscription form completed by the Customer.

1.1.16 "Termination Point" means the point at which Fibrehood's Network terminates at the Customer Premises, including the ONT.

1.2 Interpretation

Unless the context requires otherwise:

- words importing the singular include the plural and vice versa;
- words importing any gender include all genders;
- references to persons include natural and juristic persons;
- headings are for convenience only and shall not affect interpretation.

2. APPLICATION OF THESE TERMS

2.1

These Standard Terms & Conditions govern all residential services provided by Fibrehood.

2.2

By signing a Service Order Form, making payment for Services, accepting installation or using the Services, the Customer agrees to be bound by this Agreement.

2.3

In the event of conflict between documents, the following order of precedence shall apply:

1. Service Order Form
2. Standard Terms & Conditions
3. Service Level Agreement
4. Fair Use Policy
5. Price Schedule
6. Other Annexures

3. PROVISION OF SERVICES

3.1

Fibrehood shall provide the Services requested by the Customer subject to:

- network availability;
- technical feasibility;
- payment of applicable Charges;
- compliance with this Agreement.

3.2

Fibrehood reserves the right to refuse, postpone or cancel installation where:

- technical feasibility is not achieved;
- regulatory approvals are unavailable;
- access to the premises cannot be obtained;
- safety concerns exist.

3.3

Installation dates are estimates only and are not guaranteed.

4. TERM AND TERMINATION

4.1

This Agreement commences upon acceptance of the Service Order Form by Fibrehood.

4.2

Unless otherwise agreed in writing, Services are provided on a month-to-month basis.

4.3 Customer Termination

The Customer may terminate the Services by providing thirty (30) calendar days written notice.

4.4 Fibrehood Termination

Fibrehood may terminate or suspend Services:

- for non-payment;
- for fraud or unlawful activity;
- for breach of this Agreement;
- for breach of the Fair Use Policy;
- where required by law or regulation.

4.5

Termination shall not relieve the Customer of any outstanding payment obligations.

5. NETWORK OWNERSHIP

5.1

All passive and active telecommunications infrastructure installed by Fibrehood shall remain the sole property of Fibrehood unless expressly transferred in writing.

5.2

This includes:

- fibre optic cables;
- ducts;
- poles;
- cabinets;
- splitters;
- access boxes;
- termination points;
- ONTs;
- network electronics;
- associated infrastructure.

5.3

Installation at the Customer Premises shall not transfer ownership of any Fibrehood infrastructure to the Customer.

5.4

Fibrehood reserves the right to inspect, maintain, relocate, replace, upgrade or remove any Fibrehood infrastructure.

6. ACCESS RIGHTS

6.1

The Customer grants Fibrehood, its employees, contractors and agents reasonable access to the Customer Premises for:

- surveys;
- installation;
- maintenance;
- upgrades;
- repairs;
- inspections;
- equipment recovery.

6.2

The Customer shall obtain all necessary approvals from landlords, homeowners associations, trustees, managing agents or other relevant parties.

6.3

The Customer indemnifies Fibrehood against losses arising from failure to obtain such approvals.

7. INSTALLATION AND ACCEPTANCE

7.1

The Customer shall ensure that the Customer Premises is suitable for installation.

7.2

The Customer shall provide adequate electrical power and a safe working environment.

7.3

The Services shall be deemed accepted unless defects are reported within seven (7) calendar days of activation.

7.4

Subsequent callouts may attract charges in accordance with the Price Schedule.

8. EQUIPMENT

8.1 Fibrehood-Owned Equipment

Equipment supplied on loan remains the property of Fibrehood.

8.2 Customer-Owned Equipment

Equipment purchased outright by the Customer remains Customer property.

8.3

The Customer shall:

- keep Equipment secure;
- prevent damage;
- prevent unauthorised access;
- promptly report loss or theft.

8.4

The Customer shall be responsible for repair or replacement costs resulting from negligence, theft, loss or wilful damage.

8.5

The Customer shall not relocate or interfere with Equipment without Fibrehood's written approval.

9. USE OF SERVICES

9.1

Residential Services are intended solely for personal domestic use.

9.2

The Customer shall not:

- resell Services;
- provide connectivity to third parties for reward;
- operate public hotspots;
- operate internet cafés;
- use residential services for commercial operations;
- engage in unlawful activity.

9.3

The Customer shall comply with:

- Zimbabwean law;

- POTRAZ regulations;
- the Fair Use Policy.

10. FAIR USE AND NETWORK MANAGEMENT

10.1

The Fair Use Policy forms an integral part of this Agreement.

10.2

Fibrehood may implement:

- traffic shaping;
- congestion management;
- bandwidth controls;
- security measures;
- service restrictions,

where reasonably necessary to protect the Network or ensure fair access.

11. CHARGES AND PAYMENT

11.1

The Customer shall pay all applicable Charges.

11.2

Monthly subscriptions are payable in advance.

11.3

Activation Fees, installation fees and equipment charges shall be payable as specified in the Service Order Form or Price Schedule.

11.4

Fibrehood may amend pricing upon not less than thirty (30) days notice.

11.5

Late payments may attract administration charges and service suspension.

12. NON-PAYMENT

12.1

Fibrehood may suspend Services immediately where amounts remain unpaid beyond the due date.

12.2

A reconnection fee may be charged following suspension.

12.3

The Customer shall remain liable for all collection, legal and recovery costs incurred by Fibrehood.

13. SERVICE PERFORMANCE

13.1

Services are provided on a best-effort basis.

13.2

Fibrehood does not guarantee uninterrupted, error-free or continuous service availability.

13.3

Actual speeds may vary due to:

- network congestion;
- Wi-Fi performance;
- customer equipment;
- third-party networks;
- internet destination performance.

13.4

Fibrehood's responsibility extends to delivery of service at the Termination Point.

14. MAINTENANCE AND OUTAGES

14.1

Fibrehood may perform planned maintenance, upgrades and migrations.

14.2

Where reasonably possible, advance notice shall be provided.

14.3

Emergency maintenance may be undertaken without notice.

15. DAMAGE TO INFRASTRUCTURE

15.1

The Customer shall not damage, relocate, tamper with or interfere with Fibrehood infrastructure.

15.2

The Customer shall be liable for repair or replacement costs arising from damage caused by:

- the Customer;
- occupants;
- employees;
- contractors;
- visitors.

16. PERSONAL INFORMATION AND PRIVACY

16.1

Fibrehood shall process personal information in accordance with:

- the Cyber and Data Protection Act [Chapter 12:07];
- applicable telecommunications legislation.

16.2

The Customer consents to processing of personal information for:

- service delivery;
- billing;
- customer support;
- fraud prevention;

- regulatory compliance;
- network security.

16.3

Information may be stored using secure cloud-based systems located within or outside Zimbabwe where legally permissible.

17. REGULATORY COMPLIANCE

17.1

Fibrehood shall comply with:

- Postal and Telecommunications Act [Chapter 12:05];
- Cyber and Data Protection Act [Chapter 12:07];
- Interception of Communications Act [Chapter 11:20];
- POTRAZ licence conditions.

17.2

The Customer acknowledges that Fibrehood may be required by law to disclose information, retain information or restrict Services pursuant to lawful directives.

18. FORCE MAJEURE

Neither party shall be liable for failure to perform obligations caused by a Force Majeure Event.

19. LIMITATION OF LIABILITY

19.1

Fibrehood shall not be liable for:

- indirect losses;
- consequential losses;
- loss of profits;
- loss of business;
- loss of goodwill;
- loss of anticipated savings;
- loss of data.

19.2

Fibrehood's aggregate liability shall not exceed the subscription fees paid by the Customer during the preceding three (3) months.

20. INDEMNITY

The Customer indemnifies Fibrehood against all claims, losses, damages, liabilities, costs and expenses arising from:

- misuse of the Services;
- unlawful activities;
- breach of this Agreement;
- damage to Fibrehood infrastructure.

21. DISPUTE RESOLUTION

21.1

Customers shall first utilise Fibrehood's internal complaints and escalation procedures.

21.2

Disputes not resolved internally may be referred to POTRAZ.

21.3

Nothing prevents either party from seeking relief from a competent court.

22. NOTICES

Fibrehood

FIBREHOOD (PRIVATE) LIMITED

28 Telford Road
Graniteside
Harare
Zimbabwe

Email: admin@fibrehood.co.zw

Website: www.fibrehood.co.zw

Customer

As stated in the Service Order Form.

23. GENERAL

23.1 Entire Agreement

This Agreement constitutes the entire agreement between the parties.

23.2 Amendments

Fibrehood may amend these Terms & Conditions, the Fair Use Policy and related documents from time to time.

23.3 Governing Law

This Agreement shall be governed by the laws of Zimbabwe.

23.4 Jurisdiction

The parties submit to the jurisdiction of the courts of Zimbabwe.

23.5 Severability

If any provision is found unenforceable, the remaining provisions shall remain in force.

ANNEXURES

Annexure 1: Residential Service Level Agreement (SLA)

Annexure 2: Acceptable Fair Use, Access & Network Management Policy

Annexure 3: Residential Product & Pricing Schedule

Annexure 4: Privacy & Data Protection Notice

Annexure 5: Customer Service Order Form

END OF STANDARD TERMS & CONDITIONS – VERSION 2.0

Fibrehood (Private) Limited

Licensed Network Facilities, Network Services and Application Services Provider – Zimbabwe

Registered Office: 28 Telford Road, Graniteside, Harare